BRENDAN NGEHSI NEWANFORBI
[CURRENT SERVICE ADDRESS]
[TELEPHONE] | [EMAIL]
Petitioner, in propria persona

SUPERIOR COURT OF CALIFORNIA
COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner,
v.
CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; and DOES 1–10, Respondents.

Case No. 26CV191136 | Department 25
Assigned to: Hon. Jenna M. Whitman

[PROPOSED] JUDGMENT ON FIRST CAUSE OF ACTION GRANTING PEREMPTORY WRIT OF MANDATE AND REMANDING CERTIFICATION REQUEST

The matter came before the Court on _____. Petitioner and Respondents had notice and an opportunity to present evidence and argument. Having considered the admitted evidence, the parties' submissions, and the record of proceedings, the Court enters the following judgment on the First Cause of Action.

Findings and limits of decision

The Court finds that the April 20, 2026 denial of Petitioner's April 9, 2026 Form I-918 Supplement B certification request constitutes an abuse of discretion or application of an erroneous legal standard for the following material reason, as supported by the Court's findings:

[INSERT THE SPECIFIC ERROR ACTUALLY FOUND BY THE COURT, THE SUPPORTING FINDINGS, AND WHY THE ERROR IS MATERIAL TO THE QUALIFYING-ACTIVITY DETERMINATION.]

The Court does not infer an abuse merely from the length of the denial, the absence of criminal charges, the subsequent detention certificate, a later laboratory concentration, or the assertion of

a privilege. The Court does not determine that an isolated report discrepancy, without consideration of the remaining evidence and applicable criminal elements, necessarily establishes qualifying criminal activity.

The Court concludes that a lawful reconsideration remains necessary. This judgment does not compel certification, grant immigration status, adjudicate damages, or grant relief on dismissed claims.

Judgment and directions

Judgment is entered for Petitioner on the First Cause of Action to the extent stated here. A peremptory writ shall issue directing Respondent California Highway Patrol, acting through its authorized certifying official, and Respondent G. Serrato in his official capacity, as applicable, to:

1. Vacate the April 20, 2026 denial of the April 9, 2026 certification request.

2. Reconsider and decide the request within 30 days after service of the writ. In doing so, Respondents shall apply Penal Code section 679.10 and comply with the findings and legal determinations actually made by this Court, rather than perpetuate any material error identified above. [1]

3. Evaluate the qualifying-activity issue on an accurate factual basis, including the evidence submitted with the request and such additional evidence as may properly be considered consistently with this judgment. Consider the complete circumstances bearing on lawful authority for custody, including any objectively supported alternative ground, rather than treating the asserted DUI ground as the only possible source of authority.

4. If the qualifying-activity predicate is met, evaluate helpfulness under subdivisions (g) and (h), and complete and deliver the certification if the applicable statutory conditions are satisfied. A

[1] Penal Code § 679.10. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.

new determination shall not rest on a factor prohibited by subdivision (k). Any denial shall comply with subdivision (i)(2), as applicable. [2]

5. File and serve a return within 45 days after service of the writ stating the steps taken to comply and attaching the new decision or completed certification, with any legally necessary redactions or protective procedures.

The 30-day and 45-day periods are terms of this judgment and writ. They do not constitute a finding that the original statutory processing period was violated. No certification shall be deemed issued merely because a return is late.

The Court retains jurisdiction to determine compliance and any timely objection to the return. No discovery-compulsion or disclosure order is entered by this judgment.

Costs: [AS DETERMINED BY THE COURT UNDER APPLICABLE LAW.]

Dated: _____

_____

JUDGE OF THE SUPERIOR COURT

[2]Penal Code § 679.10. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.